

24VECV04613 24VECV04613

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Case Number: 24VECV04613 Hearing Date: July 29, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TAIYON ELIJAH HECTOR, an Individual,

Plaintiff,

vs.

ANGELA

RENEE WHITE a.k.a. BLAC CHYNA, an Individual, and Does 1-10, inclusive.

Defendant.

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CASE NO.: 24VECV04613

ORDER

GRANTING IN PART CROSS-DEFENDANT'S MOTION TO STRIKE PORTIONS OF
CROSS-COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16 (ANTI-SLAPP)

ANGELA

RENEE WHITE a.k.a. BLAC CHYNA, an Individual,

Cross-Complainant,

vs.

TAIYON

ELIJAH HECTOR, aka TAIYON "TWIN" HECTOR, aka TWIN HECTOR, aka TEAM TWIN, aka
TEAM HECTOR, aka LIL TWIN, an individual, and ROES 1-20, inclusive,

Cross-Defendants.

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I.

BACKGROUND

Plaintiff Taiyon Elijah

Hector ("Hector") filed this personal injury action against Angela Renee White a.k.a. Blac Chyna ("White"). Hector alleges he lived with White when she would become physically violent and verbally abusive towards him, including while he was asleep, causing him injury. (See Compl., ¶¶ 20, 30.)

White filed a

Cross-Complaint alleging that following the termination of her romantic relationship with Hector, he continued an escalating campaign of harassment, defamation, and commercial exploitation of White's identity. (See Cross-Compl., ¶ 10.)

Hector moves to strike portions of the Cross-Complaint under the anti-SLAPP statute.

II. PROCEDURAL HISTORY

On September 24, 2024, Hector filed a Complaint alleging (1) Violation of California Domestic Violence Prevention Act – Civil Code §1708.6; (2) Civil Assault; (3) Civil Battery; (4) Intentional Infliction of Emotional Distress; (5) Negligent Infliction of Emotional Distress; and (6) Negligence – Premises Liability.

On July 1, 2025, the Court entered default against White.

On December 30, 2025, the Court granted White's Motion to Set Aside and Motion to Quash and denied her Motion to Seal.

On February 4, 2026, the Court denied White's Motion to Seal.

On March 27, 2026, White filed a Cross-Complaint alleging (1) Breach of Contract (Non-Disclosure Agreement); (2) Defamation (Libel and Slander); (3) Intentional Infliction of Emotional Distress; (4) Assault; (5) Battery; (6) Conversion; (7) Fraud and Intentional Misrepresentation; (8) Misappropriation of Name, Image, and Likeness / Right of Publicity; (9) Civil Stalking (California Civil Code § 1708.7); (10) Unfair Competition (California Business & Professions Code § 17200 et seq.); (11) False Light Invasion of Privacy; (12) Public Disclosure of Private Facts; (13) Negligent Infliction of Emotional Distress (In the Alternative); and (14) Violation of California Civil Code § 1708.6.

On May 26, 2026, Hector filed

the instant Anti-SLAPP Motion.

On May 27, 2026, White filed
an Answer.

On July 17, 2026, White
filed an Opposition.

On July 24, 2026, Hector
filed a Reply. In the interest of judicial efficiency, the Court exercises its
discretion to consider the untimely Opposition and Reply. (See Minute
Order June 30, 2026.)

III.

LEGAL STANDARD

“A cause of action against a person arising
from any act of that person in furtherance of the person’s right of petition or
free speech under the United States Constitution or the California Constitution
in connection with a public issue shall be subject to a special motion to
strike, unless the court determines that the plaintiff has established that
there is a probability that the plaintiff will prevail on the
claim.” (Code Civ. Proc. § 425.16 (b)(1).)[1]

“A court
evaluates an anti-SLAPP motion in two steps. ‘Initially, the moving defendant
bears the burden of establishing that the challenged allegations or
claims ‘arise from’ protected activity in which the defendant has engaged. If
the defendant carries its burden, the plaintiff must
then demonstrate its claims have at least ‘minimal
merit.’ [Citation.] If the plaintiff fails to meet that
burden, the court will strike the claim.” (Wilson v. Cable News
Network, Inc. (2019) 7 Cal.5th 871, 884.) ٪

IV.

EVIDENTIARY OBJECTIONS

Overruled: Nos.

1-5, 6.

Sustained:

No. 5

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V.

ANALYSIS

Hector moves

to strike the following causes of action (the “Challenged Claims”) from White’s Cross-Complaint: (1) Second Cause of Action for Defamation (Libel and Slander); (2) Third Cause of Action for Intentional Infliction of Emotional Distress; (3) Eleventh Cause of Action for False Light Invasion of Privacy; (4) Twelfth Cause of Action for Public Disclosure of Private Facts; and (5) Thirteenth Cause of Action for Negligent Infliction of Emotional Distress.

A.

First Prong – Hector Meets his Burden
to Show Protected Activity

Hector

contends the Challenged Claims are based wholly or in part on his appearance at a January 13, 2024, interview on the YouTube channel unWineWithTashaK (“Interview”) (see Cross-Compl., ¶ 23), his December 13, 2025, album release (“Album”) (see id., ¶¶ 25-51), and his December 15, 2025, Instagram posts (“Instagram posts”) (see id., ¶ 26). (See Mot. at 6:16-7:11.) Hector argues these collective communications are protected under § 425.16(e)(3) and (e)(4). (See Mot. at 4:15-17.) Hector argues the Interview, Album, and Instagram posts were all made in a public forum under § 425.16(e)(3). (See id., at 4:23-27, 5:4-7, citing *Lieberman v. KCOP Television, Inc.* (2003) 110Cal.App.4th 156, 164; *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 [internet posts are public forums], and *Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 484.) Hector also argues the Album’s artwork and promotional materials are clearly integral to the artistic work of the Album and are likewise protected. (See id., at 5:4-7.)

Hector

attests the YouTube channel unWineWithTashaK is publicly accessible celebrity entertainment channel with a large audience. (See Declaration Taiyon Elijah Hector filed May 26, 2026 (“Hector Decl.”), ¶ 4.) Hector attests his Instagram posts

were posted to his public account and his Album, I Hate you 2, was released publicly through standard music distribution channels. (See id., ¶¶ 5-6.)

Hector argues his speech and artistic works published in the Interview, Album, and Instagram posts concern matters of public interest, namely White's character as Hector perceived it during their relationship and their breakup. (See Mot. at 5:2-3, 20-22; see also Hector Decl., ¶ 6.) Hector contends he and White are public figures; White is a "public figure, entertainer, ... business owner", and "media personality" and Hector is "a rapper, musician, and media personality." (Cross-Compl., ¶¶ 1, 6-7.) Accordingly, Hector argues his Interview, Album, and Instagram posts are protected under § 425.16(e)(3) and (e)(4).

In opposition, White argues she does not contend that none of Hector's publications qualify as protected activity. Instead, she argues that not every topic Hector disclosed was a matter of public interest. (See Opp. at 6:21-23.) White also argues the Challenged Claims do not all rest on the same acts. (See id., at 6:27-7:5.) White argues the Court should identify the discrete publications that qualify as protected activity and proceed to the second step only as to the claims arising from those publications. (See id., at 7:14-15.)

In reply, Hector contends the Opposition does not contradict the Challenged Claims arise from protected activity and thus Hector has met his satisfied prong one. (See Reply at 4:3-9.)

The Court finds Hector makes a prima facie showing White's Challenged Claims arise in part from Hector's protected speech. The anti-SLAPP statute protects statements and writings "made in a place open to the public or a public forum in connection with an issue of public interest." (Code Civ. Proc. § 425.16(e)(3).) The statute also protects "any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest" (See id., § 425.16(e)(4).) Section 425.16(e)(4) has no public forum requirement. (See id.; see also Hailstone v. Martinez (2008) 169 Cal.App.4th 728, 736.)

The facts

here trigger protection under both categories. The Court first turns to whether Hector's statements were made in a public forum and then whether the statements concern matters of public interest.

As to the

first, the Court finds Hector's published his statements on a public forum. A website open to the public is a "public forum" or a place "open to the public" within the meaning of section 425.16. (See *Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 41.) Here, the Interview was published on the publicly accessible YouTube channel unWineWithTashaK and Hector's Instagram posts were published on his public Instagram account. YouTube and Instagram are two social media platforms accessible online and are thus public forums.

The Court

does not find the Album is a public forum such that it qualifies as protected activity under § 425.16(e)(3). "A public forum is a place open to the use of the general public for purposes of assembly, communicating thoughts between citizens, and discussing public questions." (*Kurwa v. Harrington, Foxx, Dubrow & Canter, LLP* (2007) 146 Cal.App.4th 841, 846 [internal quotes omitted].) The Court does not find a music album is a setting or context open to use by the general public. The cases Hector cites, *Lieberman* and *Grenier*, do not hold music albums are public forums under § 425.16(e)(3).[2] However, the Album need not qualify as a public forum to constitute protected activity under § 425.16(e)(4), it need only concern matters of public interest. The Court next turns to whether the statements made in the Interview, Instagram posts, and Album concern matters of public interest.

To that end,

the Court finds the collective publications at issue concern matters of public interest.

An issue of

public interest within the meaning of the anti-SLAPP statute is "any issue in which the public is interested." (*Nygård, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1042.) An issue may be of "public interest" without being of public importance or significance. (See *id.* [former employee's statements to magazine about his work experience for prominent businessman and celebrity were of "public interest"]; but see *Albanese v. Menounos* (2013) 218 Cal.App.4th 923, 935-936 [rejecting interpretation of *Nygård* as holding any statement about a person in the

public eye is matter of public interest[.])

“The most

commonly articulated definitions of ‘statements made in connection with a public issue’ focus on whether (1) the subject of the statement or activity precipitating the claim was a person or entity in the public eye; (2) the statement or activity precipitating the claim involved conduct that could affect large numbers of people beyond the direct participants; and (3) whether the statement or activity precipitating the claim involved a topic of widespread public interest. [Citations.]” (See *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 898.)

To determine

whether a particular statement is protected as being in connection with an issue of public interest, a two-part test is used. First, the court must decide what “issue of public interest the speech in question implicates—a question we answer by looking to the content of the speech.” Second, the court examines the “functional relationship ... between the speech and the public conversation about some matter of public interest.” (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th at 149-150 [internal quotes omitted].) This second part of the test includes determining if the speaker “participated in, or furthered, the discourse that makes an issue one of public interest.” (*Id.*, 7 Cal.5th at 246; see also *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 898 [a statement or activity precipitating the claim involved a topic of widespread public interest must in some manner itself contribute to the public debate.”].)

The Court

finds Hector’s Interview statements concerning his relationship with White furthered the discourse on matters of public interest. Here, the Complaint alleges Hector made statements in the Interview that: (1) White was physically and verbally abusive throughout their relationship and she became violent when using alcohol or drugs and would not remember incidents the next day; (2) White attempted to strangle him and used objects as weapons including phone cords, kitchen utensils, and furniture to threaten him; (3) White attacked him while he was asleep causing him bodily injury; (4) White’s physician made private house calls to their home rather than have him go to a hospital, as if to conceal the incidents; (5) White threatened to kill him during arguments and while he was sleeping; and (6) Private and confidential details about Cross-Complainant’s family, including her mother, Tokyo Toni (Shalana Jones-Hunter), including characterizations of her conduct and alleged private

communications. (See Cross Compl., ¶ 23.)

Here, the

Cross-Complaint alleges the Interview was published on the “YouTube channel unWineWithTashaK, hosted by Tasha K (Latasha Transrina Kebe), a celebrity entertainment platform with an estimated 1.3 million subscribers...”

(Cross-Compl., ¶ 23.) The alleged statements Hector made concern White, a media personality professionally known as Blac Chyna, who “first gained prominence in the early 2010s through modeling and hip-hop culture and later achieved mainstream recognition through reality television, including the E! series Rob & Chyna.” (Id., ¶¶ 1, 6.) White “has publicly engaged in significant personal growth, including rebranding under her given name, Angela White, and actively promoting a sobriety and wellness journey that has become a central and commercially essential element of her professional identity and brand relationships.” (Id.) Celebrities are generally considered to be people in the “public eye” whose activities are a “topic of widespread public interest.” (Hilton v. Hallmark Cards (9th Cir. 2010) 599 F.3d 894, 907.)

The Court

finds Hector’s statements concerning White’s behavior[3] during their relationship implicate White’s character, an issue of public interest given she maintains some level of celebrity status. The Court finds Hector’s Interview statements published on a YouTube channel that delivers entertainment news to many viewers likely encouraged the public to discuss White’s character and whether her public presentation is a façade. Accordingly, Hector’s Interview statements concerning White’s behavior during her relationship with Hector concern matters of public concern. Hector has shown his statements during the Interview are protected activity under § 425.16(e)(3).

The Court also finds Hector’s statements in his Instagram posts and Album furthered the discourse on matters of public interest. The Cross-Complaint alleges Hector published Instagram posts containing “profane and derogatory statements targeting [White] on Instagram and published [White’s] photograph or likeness without her prior consent...” (Cross-Compl., ¶ 26.) The Instagram posts disclosed that White’s physician made private house calls to treat alleged injuries at her home rather than at hospital; White’s personal substance abuse during the relationship; White’s relationship conduct, alleged personal behaviors, and private communications; and information about White’s family including her

mother. (See *id.*, ¶ 146.) The Cross-Complaint alleges Hector released an Album containing song lyrics disclosing the same content as his Instagram posts and cover depicting White's photograph. (See Cross-Compl., ¶¶ 25, 51, 76c, 147.) The Cross-Complaint also alleged the Album's promotional materials contained statements directed at White. (See *id.*, ¶ 51.)[4] The Court finds Hector's Instagram posts and Album depicting White's likeness and concerning White's behavior during their relationship concern matters of public interest for the same reason the Court finds his Interview statements do, as all three publications contain the same content. Accordingly, Hector has shown his Instagram posts are protected under § 425.16(e)(3) and his Album is protected activity under § 425.16(e)(4).

The Court also finds the Challenged Claims, except for the defamation claim, arise from Hector's statements in the Interview, Instagram posts, and Album and thus arise from protected activity. "The critical point is whether the plaintiff's cause of action itself was based on an act in furtherance of the defendant's right of petition or free speech." (*Scott v. Metabolife Intern., Inc.* (2004) 115 Cal.App.4th 404, 414.) Whether the anti-SLAPP statute applies is determined by the "principal thrust" or "gravamen" of the claim and therefore the statute cannot be invoked for allegations of protected activity that are only incidental to a cause of action based on unprotected activity. (See *Martinez v. Metabolife Int'l, Inc.* (2003) 113 Cal.App.4th 181, 185.)

Here, the second cause of action for defamation is based wholly on the Album, including its cover, and Instagram posts. (See Cross-Compl., ¶ 84, 89.) However, because the second claim does not incorporate paragraphs 146 and 147, which plead in general terms Hector's alleged defamatory statements published in his Instagram and Album, the Court finds Hector does not meet his burden to show the second claim is based on protected activity. Paragraphs 51-52, 84, and 89 do not specifically identify or plead verbatim any alleged defamatory statements. (See Cross-Compl., ¶¶ 25-26, 51-52, 84, 89.) "Indeed, it is difficult, if not impossible, to see how defendants could have met [their initial] burden with plaintiff's failure to specifically plead the allegedly defamatory statements." (*Martin v. Inland Empire Utilities Agency* (2011) 198 Cal.App.4th 611, 628; *Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 888 ["The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint."].) Thus, Hector does not meet prong one as to the second cause of action for

defamation.

The third cause of action for IIED, eleventh cause of action for false light, twelfth cause of action for public disclosure, and thirteenth cause of action for NIED are based wholly or in part on the Interview, Album, and Instagram posts. (See *id.*, ¶¶ 93, 141, 146-147, 152.) Although the third and eleventh claims are based on the Album and Instagram posts and do not incorporate paragraphs 146 and 147, these claims are also based on the Interview. Accordingly, the Court finds Hector meets his burden in showing that the third, eleventh, twelfth, and thirteenth causes of action arise from protected activity.

Thus, Hector meets his burden in showing that the Challenged Claims, except for the defamation claim, arise from protected activity. The burden now shifts to White to show probability of success on the merits.

B.

Prong two - White meets her burden in establishing the merits of her Eleventh Cause of Action for False Light and Thirteenth Cause of Action for NIED.

If the defendant shows it engaged in protected activity, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. (See *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384–385). The California Supreme Court has described this second step as a “summary-judgment-like procedure.” (*Taus v. Loftus* (2007) 40 Cal.4th 683, 712.) The court does not weigh evidence or resolve factual conflicts; instead, “the inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment.” (*Baral*, 1 Cal.5th at 384–385.) The court “accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 819–820.) “Claims with the requisite minimal merit may proceed.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 94.)

As discussed above, because Hector did not satisfy prong one as to the second cause of

action, the Court will consider only the third, eleventh, twelfth, and thirteenth causes of action in its prong two analysis.

1.

3rd Cause of Action:

Intentional Infliction of Emotional Distress

“The elements

of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

“Liability

for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities....It is for the court to determine in the first instance whether the defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (Jackson v. Mayweather (2017) 10 Cal. App. 5th 1240, 1265 [internal quotations and citations omitted].)

Hector argues

his public commentary about his relationship with White does not constitute extreme or outrageous conduct. (See Mot. at 11:16-20, citing Jackson, 10 Cal.App.5th at 1265; Reply at 8:27-28.) Hector also argues the IIED claim fails to allege malice or that the alleged statements were provably false. (See Mot. at 11:26-27, 12:9-10; Reply at 9:20-25, 10:4-10.)

Hector cites Reader's Digest Assn. v. Superior Court (1984) 37 Cal.3d 244, 265-66, for the proposition that an IIED claim must also allege malice when they are based on the same underlying facts as a defamation claim. (See Mot. at 12:12-14.)

In

opposition, White argues her allegations and evidence show Hector's conduct was extreme and outrageous and in fact caused her severe emotional distress. (See

Opp. at 14:22-5:4; Declaration of Angela Renee White filed July 17, 2026
("White Decl."), ¶¶ 170-176.)

As an initial matter, White does not need to allege malice or a provably false statement as these are not elements of an IIED claim. Reader's Digest held the plaintiff's IIED claim fails because "liability cannot be imposed on any theory for what has been determined to be a constitutionally protected publication." (Reader's Digest, 37 Cal.3d at 265-66.) This case did not hold an IIED claim requires pleading and proving malice as Hector argues. A provably false statement is an element of a defamation claim and not an IIED claim.

Here, the IIED claim is based in part on the Interview, Album, and Instagram posts. (See Cross-Compl., ¶ 93.) The IIED claim is also based on Hector's conduct that is not the subject of this Motion, including making threatening phone calls to White, manipulating White during their relationship, and physical altercations with White in 2021 and 2023. (See *id.*) Because Hector satisfied prong one as to the Interview only, as this claim does not incorporate the general contents of Hector's Album and Instagram posts at paragraphs 146 and 147, the Court will focus only on the Interview allegations.

Here, the Cross-Complaint alleges Hector alleged in the Interview that: (1) White was physically and verbally abusive throughout their relationship and she became violent when using alcohol or drugs and would not remember incidents the next day; (2) White attempted to strangle him and used objects as weapons including phone cords, kitchen utensils, and furniture to threaten him; (3) White attacked him while he was asleep causing him bodily injury; (4) White's physician made private house calls to their home rather than have him go to a hospital, as if to conceal the incidents; and (5) White threatened to kill him during arguments and while he was sleeping. (See Cross Compl., ¶ 23.)^[5] The Court finds the Interview allegations do not constitute extreme and outrageous conduct. "Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." (Jackson, 10 Cal.App.5th at 1265.) The Court does not find Hector's statements that White attacked or threatened him is extreme and utterly intolerable conduct.

White fails

to state her claim based on the Interview. Therefore, the Court GRANTS the Motion as to striking the Interview allegations that support the third cause of action for IIED.[6] This includes the allegation Hector “publicly broadcast[ed] false allegations of criminal violence to an audience of over 1.3 million subscribers on January 13, 2024...” (Cross-Compl., ¶ 93.)

2.

11th Cause of Action: False

Light Invasion of Privacy

“One who

gives publicity to a matter concerning another that places the other before the public in a false light is subject to liability to the other for invasion of his privacy, if (a) the false light in which the other was placed would be highly offensive to a reasonable person, and (b) the actor had knowledge of or acted in reckless disregard as to the falsity of the publicized matter and the false light in which the other would be placed.” (Daniel v. Wayans (2017) 8 Cal.App.5th 367, 397 [internal quotations omitted].) To establish a false light claim based on a defamatory publication, a plaintiff “must meet the same requirements” as for a defamation claim. (See Balla v. Hall (2021) 59 Cal.App.5th 652, 687 citing Hawran v. Hixson (2012) 209 Cal.App.4th 256, 277.)[7]

“The elements

of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. The defamatory statement must specifically refer to, or be of and concerning, the plaintiff.” (John Doe 2 v. Superior Court (2016) 1 Cal.App.5th 1300, 1312 [quotation marks and citation omitted].) “[T]o state a defamation claim that survives a First Amendment challenge, plaintiff must present evidence of a statement of fact that is provably false.” (Gilbert v. Sykes (2007) 147 Cal.App.4th 13, 27.) The dispositive question “is whether a reasonable trier of fact could conclude that the published statements imply a provably false factual assertion.” (Id.) “The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint.” (Id., at 31.) “Public figures have the burden of proving both that the challenged statement is false, and that [defendant] acted with actual malice.” (Balla, 59 Cal.App.5th at

687 [internal quotations omitted].)

Hector argues

the false light claim fails because it fails to plead facts evidencing Hector's actual malice and insufficiently alleges the element that the publication be highly offensive to a reasonable person, given that White has made public her sobriety journey. (See Mot. at 8:14-17, 13:3-5, 13:9-20.)

In

opposition, White argues a reasonable trier of fact could find Hector's allegations in the Interview to be highly offensive. (See Opp. at 11:5-6.) White attests she denies the repeated beatings, illegal drug use, and unprovoked violence. (See White Decl., ¶¶ 74–78.)[8] White also attests Hector's personal knowledge supports actual malice. In support of this position, White attests "Hector personally knew whether I had repeatedly beaten him...and whether he had ever impregnated me." (White Decl., ¶ 93.)

In reply, Hector

reasserts White fails to show the publications were highly offensive to her given that she has publicly spoken on the same topics. (See Reply at 6:26-7:2, 7:10-15.) Hector also argues White fails to show evidence that the publications were made with actual malice. (See id., at 7:16-18.)

Here, the false

light claim is based on the Interview, Album, and Instagram posts. (See Cross-Compl., ¶ 141.) Because Hector satisfied prong one as to the Interview only, as this claim does not incorporate the general contents of Hector's Album and Instagram posts, the Court will focus only on this publication. Here, the Cross-Complaint appears to allege Hector stated in the Interview that: (1) White was physically and verbally abusive throughout their relationship and she became violent when using alcohol or drugs and would not remember incidents the next day; (2) White attempted to strangle him; (3) White attacked him while he was asleep causing him bodily injury; (4) White's physician made private house calls to their home rather than have him go to a hospital, as if to conceal the incidents; and (5) White threatened to kill him during arguments and while he was sleeping. (See Cross Compl., ¶ 23.)

"To prove

actual malice, a plaintiff must show that statements were made with knowledge that [they were] false or with reckless disregard of whether

[they were] false or not... “[A]ctual malice can be proved by circumstantial evidence.” (Balla, 59 Cal.App.5th at 682-83, quoting Reader’s Digest, 37 Cal.3d 244, 256-57 [internal quotations omitted].) “Considerations such as... ‘reliance upon sources known to be unreliable [citations] or known to be biased against the plaintiff’ may, “in an appropriate case, indicate that the publisher himself had serious doubts regarding the truth of his publication.” (Id.) Here, White alleges she is a public figure. (See Cross-Compl., ¶ 1.) White denies she was physically abusive with Hector during their relationship or threatened to kill him, that she ever attacked him unprovoked, that she used drugs during their relationship, or that any drinking caused her to become violent with him. (See White Decl., ¶¶ 32-34, 36, 74-75, 77, 93, 198.) She also attests Hector knew she disputed his version of a September 2021 altercation. (See id., ¶ 74.) The Court finds White provides sufficient circumstantial evidence from which a trier of fact, applying the clear and convincing evidence standard, could find that Hector’s statements were biased against White and therefore he acted with actual malice.

Here, the Cross-Complaint alleges Hector’s statements that White has a “serious violent criminal conduct and fabricated her entire public identity” is highly offensive to a reasonable person. (See Cross-Compl., ¶¶ 23, 142.) White submits evidence she publicly acknowledged binge drinking but not drug use or violence. (See White Decl., ¶¶ 7, 69, 77, 115-116.) White’s evidence shows she has not publicly represented herself as a violent drunk, and Hector does not submit evidence showing otherwise. On this record, assuming a reasonable viewer would perceive Hector’s Interview statements as fact, the Court finds White meets her burden in showing this depiction of her would “highly offend” a reasonably person as these statements characterizing White as a violent, abusive drunk can subject her to hatred, contempt, or obloquy. (See De Havilland v. FX Networks, LLC (2018) 21 Cal.App.5th 845, 867.)

White meets her burden to show probability of success on her false light claim. Accordingly, the Motion is DENIED as to the Eleventh Cause of Action for False Light.

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3.
12th Cause of Action: Public

Disclosure of Private Facts

The elements of the tort of public disclosure of private facts are: (1) public disclosure, (2) of a private fact, (3) which would be offensive and

objectionable to the reasonable person, and (4) which is not of legitimate public concern. (See *Taus v. Loftus* (2007) 40 Cal.4th 683, 717.) “[I]f th[e] contents o[f] [a] broadcast or publication are of legitimate public concern, the plaintiff cannot establish a necessary element of the tort action, the lack of newsworthiness.” (*Shulman v. Group W Productions, Inc.* (1998) 18 Cal.4th 200, 215.)

Hector argues

the public disclosure claim is legally insufficient because the information he publicized is newsworthy as it concerns a matter of public interest, namely White’s public persona and their relationship. (See Mot. at 14:5-11, citing *Shulman v. Group W Productions, Inc.* (1998) 18 Cal.4th 200, 214; Reply at 8:4-7.) Hector also argues publication of his experiences in his relationship with White cannot constitute disclosures highly offensive to a reasonable person. (See Mot. at 15:3-12; Reply at 8:10-15.)

In

opposition, White argues this claim is limited to portions of the Interview where Hector discloses actual private matters. (See Opp. at 12:16.) Specifically, this claim is based on disclosure of the parties’ living arrangements and household finances, specific details involving White’s children, their fathers, and coparenting, private plans White and Hector had discussed concerning having a child, and White’s later consensual sexual relationship. (See Opp. at 12:5-16.) White contends this information is not of a legitimate public concern as White never publicized this information. (See *id.*)

Here, as

alleged, this claim is based on the Interview, Instagram posts, and Album. (See Cross-Compl., ¶¶ 23(a)-(e), 146(a)-(c)-147.) White alleges the three publications disclosed the same information that: (1) White was physically and verbally abusive throughout their relationship and she became violent when using alcohol or drugs and would not remember incidents the next day; (2) White attempted to strangle him; (3) White attacked him while he was asleep causing him bodily injury; (4) White’s physician made private house calls to their home rather than have him go to a hospital, as if to conceal the incidents; and (5) White threatened to kill him during arguments and while he was sleeping. (See

id.) This claim does not appear to be based on the conduct White identifies in her Opposition as it does not allege those specific topics in the Cross-Complaint. Accordingly, the Court will not consider that conduct.

The Court

finds the claim is legally insufficient to the extent it relies on Hector's Interview statements concerning White's relationship with him because this information is related to the newsworthy subject of White's persona and her relationship with Hector. Specifically, the Court finds this information includes the conduct alleged at ¶¶ 23(a)-(e), 146(a)-(c). This publicized information is also not disproportionately intrusive to the relevance of Hector's statements. Accordingly, White does not plead a lack of newsworthiness on these facts to support her public disclosure claim.

Accordingly,

the Court GRANTS the Motion as to the Twelfth Cause of Action to the extent they are based on disclosures concerning White's relationship with Hector as alleged at ¶¶ 23(a)-(e), 146(a)-(c).

4.

13th Cause of Action:

Negligent Infliction of Emotional Distress

"[The]

negligent causing of emotional distress is not an independent tort but the tort of negligence...The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and upon a weighing of policy considerations for and against imposition of liability." (Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc. (1989) 48Cal.3d 583, 588 [cleaned up].) "[D]uty is found where the plaintiff is a direct victim, in that the emotional distress damages result from a duty owed the plaintiff that is assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two." (McMahon v. Craig (2009) 176 Cal.App.4th1502, 1510 [internal quotations omitted].)

Hector argues

the NIED claim is legally insufficient because White does not plead outrageous conduct. (See Mot. at 11:9-10.) Hector argues his speech is also nonactionable and cannot support an NIED claim. (See id., at 12:3.)

In

opposition, White argues pleading extreme and outrageous conduct is not necessary to an NIED claim. (See Opp. at 15:17-19.) White argues her claim is based on the duty Hector assumed by signing the Non-Disclosure Agreements and subsequently breached by disclosing information about her on the Interview. (See id., at 16:2-11; White Decl., ¶¶ 55–72.) In support of this position, White cites *Erich v. Menezes* (1999) 21 Cal.4th 543, 559, which held “when the express object of the contract is the mental and emotional well-being of one of the contracting parties, the breach of the contract may give rise to damages for mental suffering or emotional distress.”

In reply,

Hector argues White fails to submit evidence of her emotional distress. (See Reply at 10:23-26.) Hector also argues White provides no evidence the object of the duty assumed by the Non-Disclosure Agreements was to protect White’s emotional condition, and thus the agreements cannot supply the duty element. (See id., at 11:7-11.)

As an initial

matter, the NIED claim is broadly alleged and can be interpreted to be based in part on the Interview, Album, and Instagram posts. (See Cross-Compl., ¶ 152.) White’s Opposition and evidence appears to indicate it is only based on the Interview. (See Opp. at 16:8-9.) Accordingly, the Court will focus on whether White meets her burden to show her claim has merit with respect to the Interview.

The NIED

claim alleges Hector owed White a “duty of care arising from their intimate relationship, the express obligations of the NDAs, and his general obligation to refrain from conduct reasonably likely to cause her serious emotional distress.” (Id., ¶ 151.) The Court finds only the second item gives rise to a duty. An intimate relationship is not a special relationship giving rise to a duty and thus there is no duty alleged on this basis. (See *Gu v. BMW of North America, LLC* (2005) 132 Cal.App.4th 195, 207 [discussing cases finding physician-patient relationships, a mortuary’s relationship with close relatives, and psychotherapist-patient relationship to be special relationships giving rise to a duty of care].) A “general obligation to refrain from conduct” also does not give rise to a duty of care. “[T]here is no duty to avoid causing emotional distress to another, and that damages for

emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 984.) Thus, there is also no duty alleged on this basis.

However, White sufficiently alleges a duty based on Hector’s signing the Non-Disclosure Agreements. (See Erlich, 21 Cal.4th at 559.) Here, the Cross-Complaint alleges Hector signed and breached two identical Non-Disclosure Agreements prohibiting him from disclosing any information concerning White, her children, her mother, and their personal relationships, business activities, finances, trade secrets, and personal affairs. (See Cross-Compl., ¶¶ 14-15, 19, Exs. A-B.) The purpose of the Non-Disclosure Agreements was to keep information private and is essentially tied to White’s mental and emotional well-being. (See White Decl., ¶¶ 11, 16-20.) Non-Disclosure Agreements “exist[] primarily to further or protect emotional interests; the direct and foreseeable injuries resulting from a breach are also primarily emotional.” (See Erlich, 21 Cal.4th at 56061, quoting Kwan v. Mercedes-Benz of North America, Inc. (1994) 23 Cal.App.4th 174, 190.) Thus, Hector’s breach of the Non-Disclosure Agreements may give rise to White’s recovery for emotional damages.

White attests to her ongoing mental distress including fear, anxiety, humiliation, and loss of trust due to Hector’s disclosures in the Interview. (See White Decl., ¶¶ 59, 172, 176, 190-191.) Accordingly, White meets her burden to show her NIED claim has merit with respect to the Interview so the Court DENIES Hector’s Motion as to the Thirteenth Cause of Action for NIED.

VI. CONCLUSION

Based on the foregoing, the Court GRANTS in part Hector’s Special Motion to Strike pursuant to Code of Civil Procedure § 425.16(c) as follows:

The Motion is GRANTED as to the Interview allegations that support the third cause of action for IIED. This includes the allegation that Hector “publicly broadcast[ed] false allegations of criminal violence to an audience of over 1.3 million subscribers on January 13, 2024...” (Cross-Compl., ¶ 93.)

The Motion is

GRANTED as to the Twelfth Cause of Action to the extent they are based on disclosures concerning White's relationship with Hector as alleged at ¶¶ 23(a)-(e), 146(a)-(c).

The Court

DENIES the Motion as to the Second Cause of Action for Defamation, Eleventh Cause of Action for False Light, and Thirteenth Cause of Action for NIED.

Hector will

be entitled only to attorney fees incurred in connection with the successful portion of the anti-SLAPP Motion pursuant to a noticed motion.

IT

IS SO ORDERED.

DATED: July 29, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] Lieberman holds broadcast media was an act in furtherance of the appellant's exercise of a constitutional right to free speech in connection with a public issue. (See Lieberman, 110 Cal.App.4th at 165.) Grenier holds statements made on a Web site are made in a public forum. (See Grenier v. Taylor (2015) 234 Cal.App.4th 471, 481.)

[3] Statements concerning White's behavior does not include Hector's statements about White's family, including those about her mother, Tokyo Toni (Shalana Jones-Hunter) or characterizations about her mother's conduct or alleged private communications. (See Cross Compl., ¶ 23f.) The Court finds statements about White's mother would not be an issue of public interest. White is not a figure so prominently in the public eye that any remark about

her or tangentially related to her would qualify as speech on a matter of public concern. Further, White's mother is a nonpublic figure and thus statements about her will not implicate a public issue. Thus, the statements alleged at ¶ 23f are not protected activity.

[4] The Cross-Complaint does not allege the specific statements contained in the Album's promotional materials. Taking the allegations at paragraphs 51 and 146-147 together, the Court infers the promotional materials also contain the same statements as the Instagram posts and Interview. The Court's findings thus apply to the Album's promotional materials to the extent they include the same statements as alleged in paragraph 146, as these statements would be related to the Album's alleged subject matter, White. (See Code Civ. Proc. § 425.17(d)(2) [An anti-SLAPP motion can be used to strike lawsuits against a person or entity based on "the creation, dissemination, exhibition, advertisement, or other similar promotion of any dramatic, literary, musical, political, or artistic work"].)

[5] The "issues in an anti-SLAPP motion are framed by the pleadings." (Medical Marijuana, Inc. v. ProjectCBD.com (2020) 46 Cal.App.5th 869, 883.) Accordingly, the Court disregards any conduct and evidence identified in the Opposition that is not alleged in the Cross-Complaint. (See e.g., Opp. at 14:22-25.)

[6] This does not dispose of the IIED claim as other conduct alleged at ¶ 93 can support White's IIED claim.

[7] "When a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action." (Eisenberg v. Alameda Newspapers (1999) 74 Cal.App.4th 1359, 1385, fn. 13 [internal citations omitted].)

[8] White also discusses other conduct that is not alleged as part of the Interview statements Hector made. (See Opp. at 10:23-28; Cross-Compl., ¶ 23.) This conduct also does not appear to form the basis of the false light claim. (See Cross-Compl., ¶ 141.) Accordingly, the Court will not consider these points raised in the Opposition.